# CYPRUS INTERNATIONAL UNIVERSITY
# STUDENT DISCIPLINARY REGULATION*

*Note: This document is translated to English with the aim of helping foreign students to understand the disciplinary rules at the Cyprus International University. However, if there is any difference between the Turkish language version of this document and the English language version, the Turkish version shall be applied.

## PART ONE
## General Provisions

**Short Name** **1.** This regulation is named "**Cyprus International University (CIU), Student Disciplinary Regulation**".

**Definitions** **2.** Unless otherwise defined in this Regulation ,
"Disciplinary Committee", shall refer to the student disciplinary committee to be established as per article 23 of the present regulation,
"Student", shall refer to individuals who are enrolled at the Cyprus International University in an associate, undergraduate, graduate, doctorate, medical specialization or proficiency in art degree program,
"University", shall refer to the Cyprus International University.

**Aim** **3.** This Regulation has been established with the aims of regulating the disciplinary inquiries that shall be conducted in instances where students fail to comply with or omit any rules and regulations, contracts and commitments internal or external to the University, or any other requirements or rules to be established by the University administration, determining disciplinary sentences which shall be applicable concerning students who are found guilty, as well as determining procedures and principles concerning appeals which may be made concerning such disciplinary sentences.

**Scope** **4.** The present regulation shall cover all students at the University.

## PART TWO
## Disciplinary Offences and Sentences

**Types of Disciplinary Sentences** **5.** Disciplinary sentences which may be applied to students as per the present regulation are as follows:

**(1)** Warning: Student shall be notified in writing that they must exercise an elevated level of care in satisfying requirements concerning conduct and duties of a student.

**(2)** Reprimand: The student shall be notified in writing that they are reprimanded as a result of their failure in complying with requirements concerning duties and conduct of a student.

**(3)** Short-Term Suspension: Student shall be notified in writing that they are suspended from the University for a duration of 1 week to 1 month during which time they shall be allowed to attend neither courses nor examinations.

**(4)** Intermediate Term Suspension: Student shall be notified in writing that they are suspended from the University for a duration of 1 semester during which time the student shall not be allowed to benefit from any of the rights accruing to students of the University.

**(5)** Long-Term Suspension: Student shall be notified in writing that they are expelled from the University for a duration of two semesters during which time the student shall not be allowed to benefit from any of the rights accruing to students of the University.

**(6)** Expulsion: The student is notified in writing that their registration as a student at the University is terminated with no possibility of re-admission.

**Disciplinary Offences That Will Be Penalized by a Warning**

**6.** Acts and actions that will be penalized by a warning are as follows:

**(1)** Not answering in due time, without any rightful justification for so doing, questions addressed by authorized personnel of the University,

**(2)** Posting anywhere within the University premises announcements not authorized by the University authorities,

**(3)** Tearing off, ripping up, altering, crossing off, or soiling announcements, schedules and such that were posted with authorization of the University,

**(4)** Displaying attitude and conduct other than that which is expected of a student,

**(5)** Adopting a rude and disrespectful conduct towards other individuals, shouting, singing, playing instruments, and making noise in a manner that disrupts others, loitering the places they reside and frequent,

**(6)** Occupying those places that are reserved for personnel or invitees of the University during gatherings and ceremonies,

**(7)** Using the information system of the University for purposes other than those which the system was allocated for,

**(8)** Concealing, as a witness, any act or action which calls for a disciplinary sentence,

**(9)** Disobeying warnings of the University security personnel or disobeying traffic rules within the university premises.

**Disciplinary Offences Which Will Be Penalized by a Reprimand**

**7.** Acts and actions which will be penalized by a reprimand are as follows:

**(1)** Providing partial or incorrect information in response to demand by the University authorities,

**(2)** Disrupting the order during lectures, seminars, applied lectures, laboratory work, workshops, and conferences,

**(3)** Distributing leaflets, and posting bills and banners on the University premises without authorization,

**(4)** Displaying attitude and conduct other than that which is expected of a student,

**(5)** Writing or drawing signs, sketches and such on doors, walls, furnitures and equipments of the University premises,

**(7)** Taking part in or facilitating for others the act of gambling,

**(8)** Committing an act of piracy or plagiarism or failing to indicate references concerning sources used during homework, project and such works,

**(9)** Attempting to cheat during examinations.

**Disciplinary Offences Which Will Be Penalized by a Short Term Suspension**

**8.** Acts and actions which will be penalized by a short term suspension from the University are as follows:

**(1)** Undertaking actions which will restrict the freedom to learn and teach,

**(2)** Preventing flawless administration of disciplinary investigations,

**(3)** Giving to and facilitating use by others of a document which a student obtained from the University and which confers rights to that student, or using a document belonging to another person,

**(4)** Undertaking any written or spoken action which offences the honor and reputation of University personnel and students,

**(5)** Organizing, without permission of authorities, meetings at outdoor or indoor locations belonging to the University, or partaking in such meetings,

(6) Carrying out acts that will perturb the peace, quiet and functioning of the University,
(7) Conduct which perturbs the order during a ceremony, or which violates the schedule of the ceremony,
(8) Carrying out political activity at the University,
(9) Handing out leaflets, and posting bills and banners within the University premises,
(10) Acts of writing, and drawing or posting of pictures with immoral content on furniture, equipment, doors, walls and such places at the University,
(11) Damaging the information system of the University,
(12) Committing an act of piracy or plagiarism or failing to indicate references concerning sources used during homework, project and such works.

**Offences Which Will Be Penalized by an Intermediate Term Suspension**

**9.** Acts and actions which will be penalized by an intermediate term suspension from the University are as follows:

(1) Threatening University personnel and students,
(2) Attempting to undertake acts of boycotting, obstruction, occupation or such for purposes other than political or ideological, or acts which will disrupt the services given by the University,
(3) Assaulting University personnel and students,
(4) Committing theft on University premises,
(5) Damaging buildings, furniture and such material present on University premises, or damaging the University information system,
(6) Cheating or facilitating cheating by others during examinations,
(7) Committing an act of plagiarism in seminars, thesis, or publications,
(8) Undertaking, personally or as a group, offensive speech or publication aimed at the person or decisions of the University administrators, inciting students against the person or decisions of the University administrators, or attempting to undertake similar acts personally or as a group,
(9) Undertaking activities which will result in polarization on the bases of language, race, color, religion and sect,
(10) Undertaking acts of writing or drawing pictures, symbols and such on furniture and equipment, doors, walls and similar places at the University for political or ideological purposes,
(11) Inciting students or other persons to undertake an act which by its very nature will disrupt the functioning of the University,
(12) Organizing, without permission of authorities, meetings at outdoor or indoor locations belonging to the University, or partaking in such meetings,
(13) Assuming the title of student representative, without having been accorded the authority to do so, and thus making declarations, partaking in meetings or ceremonies, or encouraging other students to partake in such,
(14) Contravening a decision of the University prohibiting the perpetrator from entering University buildings, or entering, damaging or demolishing buildings that were confined by authorities,
(15) Being in possession of, reproducing and distributing any type of publication prohibited at the University,

(16) Taking an examination in place of another person, or facilitating such an act.

**Offences Which Will Be Penalized by a Long Term Suspension**

**10.** Acts and actions which will be penalized by a long term suspension from the University are as follows:

(1) Prevent university personnel from carrying out their duties by using force and aggression,

(2) Using force and aggression against students in an effort to prevent them from receiving services provided by the University,

(3) Using threat or aggression against a person or a group with the aim of forcing them to organize, or partake in an act that is considered an offence,

(4) Using, carrying, being in possession of mind altering substances and stimulants,

(5) Using threats in order to cheat during examinations, preventing the expulsion of cheating students from the class-room, having another person take an examination on their behalf, or taking an examination on behalf of another person,

(6) Carrying or possessing fire-arms, bullets, knives, other equipment designed specifically for offence and defense, or explosive materials,

(7) Accessing the university information system with the aim of wrongfully obtaining a benefit for their own person or for another individual.

**Offences Which Will Be Penalized By An Expulsion**

**11.** Acts and actions which will be penalized by an expulsion from the university are as follows:

(1) Committing sexual harassment or sexual assault,

(2) With the condition that such situation is a fact established by a decision of a court of justice, establishing an organization with the aim of committing crimes, leading such an organization, or being a member of an organization established towards such an end, acting on behalf of the organization or aiding it without being a member,

(3) Buying, selling, transferring to others and trading in mind altering substances and stimulants,

(4) Using fire-arms, bullets, knives, other equipment designed specifically for offence and defense, or explosive materials,

(5) Committing a disgraceful offence,

(6) Disturbing peace and quiet and functioning of the University, or taking part in such acts as boycotts, occupation, obstruction, disrupting the work of personnel for political or ideological purposes, provoking actions towards these ends,

(7) Possessing, reproducing, or distributing leaflets, banners, bills, stickers and such on University premises for political or ideological purposes, or writing, drawing, displaying the same on University buildings, or on furniture and equipment in the University buildings, and undertaking verbal or written ideological propaganda,

(8) Establishing, without authorization, existing outlawed associations and such organizations within the University,

(9) Using force or threat against individuals who are linked to a disciplinary investigation, or against a disciplinary committee in order to prevent them from executing their duties,

(10) Hiding or lodging persons who are sought by security forces,

(11) Preventing in any manner entrance to or administration of lectures or examinations, making students exit a lecture in progress, or acting in a manner so as to force or incite students to exit a lecture in progress,

(12) Torturing an individual or a group of individuals, or having others undertake such action for any purposes,

(13) Displaying an attitude and conduct which will prevent the flag raising ceremony, or expressly lacking the expected respect during the ceremony,

(14) Being a member of illegal organizations, aiding such organizations or carrying out activities on their behalf,

(15) Having been sentenced for felonies committed against the State,

(16) Causing irrecoverable damages in any buildings, yards, facilities and annexes of the University,

**Other Disciplinary Offences**

**12.** In instances where a committed action is similar in nature and gravity to those acts and actions which require disciplinary sentences as defined above, perpetrators will be issued similar sentences.

**Repeat Offences**

**13.** In instances where an act or condition which led to the administration of a disciplinary sentence on a student is repeated during the academic career of the perpetrating student, the student will be issued the disciplinary sentence which is next in degree of severity after the previously issued sentence for the same offence. In instances of acts or conditions which require a sentence of the same degree of gravity as a sentence previously administered for a different act or condition, the third instance requiring the administration of a sentence of the same degree of gravity will lead to the administration of the disciplinary sentence which is next in degree of severity after the previously issued one.

**Null and Void Examination in Instances of Cheating or Attempt at Cheating**

**14.** In instances where an act or an attempted act of cheating by a student is an officially documented fact, the student's examination will be rendered null and void.

## PART THREE
## Disciplinary Investigation

**Superiors Authorized to Launch a Disciplinary Investigation**

**15.** **(1)** Superiors authorized to launch a disciplinary investigation are as follows:

**(A)** The Dean, concerning disciplinary offences committed by students of a given faculty,

**(B)** The Director of a given institute, concerning disciplinary offences committed by the students of the institute,

**(C)** The Director of a given school or vocational school, concerning disciplinary offences committed by students of the school or the vocational school,

**(D)** The Rector's Office, in instances of an investigation concerning more than one student, or concerning acts committed by a group of students.

**(2)** Superiors who are authorized to launch an investigation shall appoint an investigator or investigators who will conduct the investigation.

**(3)** Members of the Disciplinary Committee cannot assume the duty of an investigator.

**Duration of the Investigation**

**16.** **(1)** Investigator will be appointed within 5 working days from the communication of the event, with the aim of commencing the investigation. The investigation will be concluded at the latest within 15 working days from the delivery of the written notification informing the investigator of their appointment.

**(2)** In instances where it was not possible to conclude the investigation within the said period of time, the investigator may submit a justified written demand to the authority who appointed them as investigator, asking to be accorded a one-time additional period of fifteen working days.

**Investigation Procedure**

**17.** **(1)** The investigator shall hear witnesses, may undertake an exploration, and consult an expert. Every stage of the investigation shall be recorded with the record indicating the time, place and nature of the intervention, the identity of individuals who were present, questions and answers if statements were taken, and shall be signed by the investigator, the clerk, and deposer of statements, or those who were present during an exploration. The witness, and the expert in instances where such was consulted, will be asked to swear an oath before they make a statement; the witness shall also be asked to communicate their identity, address and similar explanatory information.

**(2)** The University personnel and students are obliged to provide any type of information, files and other documents without causing any delays, and to undertake any assistance as requested by investigators.

**(3)** Secrecy concerning the inquiry is of utmost importance

**(4)** The investigator shall conduct and conclude their investigation focusing their action on the individual and acts which were targeted at the launch of the investigation. In instances where the investigator determines during their investigation that other disciplinary offences were also committed, or that other individuals must also be included in the investigation in the context of the offence which is the subject of the investigation, the investigator shall communicate their findings to the authority who launched the investigation.

**(5)** The fact that a student has changed their location within the university, or transferred to another university, or quit the university under any pretext after committing a disciplinary offence will not constitute an obstacle to the launch and continuation of a disciplinary investigation or to taking necessary decisions.

**Right to Defend Himself/Herself**

**18.** **(1)** The student who is subject to a disciplinary investigation shall be notified in writing of what constitutes the offence that is imputed to them, in a period of at least 5 days prior to the date on which they are to present their defense. In the written notification, the student shall be asked to be present at the indicated day, time and place, ready to present their defense.

**(2)** In those instances where the student does not accept the convocation for the investigation, they shall be considered to have waived their right to a defense.

**(3)** In the convocation which shall be sent to the student; it shall be indicated that in those instances where they do not comply with the convocation without any justification, or where they do not present in due time their justification for noncompliance

with the convocation, they shall be deemed to have waived their right to present their defense, and that the relevant decision concerning them shall be reached based on other evidence.

**(4)** In those instances where a student provides a valid and admissible justification for their noncompliance with the convocation, or where it is understood that they were unable to respect the convocation due to force majeure, they shall be re-allocated a reasonable amount of time, or shall be asked to submit their written defense within a period of time to be indicated. Those students who are under custody shall be informed that they are allowed to have their written defense delivered for submission.

**(5)** Investigation shall be executed in a manner which will enable the student to duly undertake a defense. Defense, however, shall not be utilized as a pretext to prolong the investigation period.

**The Investigation Report**

**19.** The investigator shall prepare an investigation report at the conclusion of the investigation which they have administered. The report will cover, the authorization for investigation, the date on which the investigation commenced, identity of the individual who was subjected to investigation and offences which were imputed to them, stages of the investigation, the evidence, and a summary of the defense received during the investigation. Every count of offence imputed to the perpetrator shall be treated separately, with evidence to be taken into consideration when debating for each offence whether the perpetrator is to be sentenced, and with a relevant disciplinary sentence to be proposed. The originals, if any, of related documents or copies thereof shall be attached to the report. The investigation report, and file, shall be submitted to the authority who launched the investigation.

**Precaution During the Investigation**

**20.** Investigators may request that Rector's Office prohibit entry to university during the investigation of the student who is subjected to the inquiry, in those instances where they deem such precaution to be necessary.

**Conclusion of the Investigation**

**21.** **(1)** The authority who had taken the decision of launching the investigation shall take necessary action as per provisions of article 22 at the latest within three working days of having received the investigation file and report.

**(2)** The authority or disciplinary committee who studies the investigation report and file may demand completion, by the same investigator, of stages of the investigation deemed to be incomplete, in those instances where such is deemed necessary.

**Authorities and Committee Authorized to Issue Disciplinary Sentences**

**22.** Disciplinary sentences of warning and reprimand may be imposed directly by the concerned vice rector, dean of the concerned faculty, director of the concerned institute or of concerned school, without a decision of the disciplinary committee. It is essential that all other disciplinary sentence be issued through a decision of the Disciplinary Committee.

## PART FOUR

## Formation, Duties and Powers of the Disciplinary Committee

**Constitution of the Disciplinary Committee**

**23.** **(1)** Disciplinary Committee shall be established of a total of 5 regular members, with 3 individuals representing the institutes and faculties of the University, 1 individual representing the schools, 1 individual representing the Department of Foreign

Languages and the English Preparatory School, 1 reserve member per each of the regular members, as well as 1 regular with 1 reserve member under the observer status to be elected by the University Student Committee.

**(2)** Members of the Disciplinary Committee will be proposed by Institute, Faculty, School or Preparatory School Directors from among academicians serving under their respective units (in graduate programs in instances concerning the Institute) before being approved by the Senate.

**(3)** Members of the Disciplinary Committee will be selected for a period of one year. Members whose period of service has ended may be re-selected.

**(4)** It is essential that members of the Disciplinary Committee hold a record free of any prior disciplinary offences. Membership of those members who are issued any criminal sentence during their membership shall be nullified. Any such member shall be replaced by a new member using the same procedure as that through which the said member had been selected. A member who is subjected to a disciplinary investigation cannot participate to the committee meetings.

**(5)** Presidency of the Student Disciplinary Committee shall be held by the representative of a different institute/faculty/school each academic year. It is indispensable that the unit representative who assumes the duties of Presidency be an academician who holds an administrative academic position with a reduced teaching workload (dean, director, vice director, department head, vice department head), and it is essential that clerical work of the Disciplinary Committee be assumed by the secretary of the unit under which the academic administrator assuming the position of President is serving.

**(6)** The position of President shall be held in conformity with the sequence which will be determined by the Rector's Office. The reserve member serving under the faculty/vocational school/institute/school under which serves the President, shall assume the position of Acting President of the Disciplinary Committee, taking part in and presiding over the meetings which the President is not able to attend.

**(7)** The Disciplinary Committee may summon as advisors such individual or individuals as it may deem appropriate in those instances where this is deemed necessary.

**Duties of the Disciplinary Committee**

**24.** Duties of the Disciplinary Committee are the following :

**(1)** Having accorded the right of defense to the student who is subjected to the investigation, evaluating the findings of the investigation based on the report, and ruling on the sentence to be administered in those instances where a sentence is required,

**(2)** Informing the Rector's Office in writing of their decisions,

**(3)** Informing the Rector's Office of decisions reached and underlying justifications, concerning those decisions of the Disciplinary Committee on which the Rector's Office or the Senate wished to meet again,

**(4)** Assembling at the end of every academic term in order to review the general state of discipline at the University, and proposing measures to be adopted by the University,

(5) Proposing amendments to be brought to the Disciplinary Regulation in an effort to address flaws detected in the implementation process,

(6) Communicating their opinion concerning state of discipline at the University, when such is necessary.

**Assembly of the Disciplinary Committee**

**25.** (1) Disciplinary Committee shall assemble with absolute majority rule upon a request of the Committee President or the Acting President, and decisions shall be reached with absolute majority rule. There shall not be used any abstention votes. In instances where the voting process results in a tie, the vote of the President shall determine the result. Assembly shall be presided by the Acting President in the absence of the President.

(2) The members must regularly attend the assembly and inform the unit under which they are serving. A regular member who is excused from attending the assembly must assure that the related reserve member attends the assembly. In instances where a given unit is not represented during the assembly on 2 consecutive occasions, President of the Disciplinary Committee shall inform the Dean/Director of the concerned unit and the Rector's Office requesting that attendance be assured. Course schedule of representatives who will be appointed to the Disciplinary Committee will be arranged in accordance with the committee assembly schedule by the academic unit under which they are serving.

**Decisions of the Disciplinary Committee**

**26.** (1) Disciplinary Committee shall conclude and rule on matters which were transferred to them within a period of 30 working days at the latest. Nevertheless treatment of those disciplinary files which are submitted to the Disciplinary Committee two weeks prior to the end of the courses at the end of the semester, or during the period reserved for final examinations, or after the final examinations may be postponed until the following semester by a decision of the Disciplinary Committee. Disciplinary matters that were postponed shall be discussed and ruled on at the latest within 30 working days from the commencement date of courses in the term in which the postponed matters are to be treated.

(2) Disciplinary Committee is free in deciding in favor of or against adopting the disciplinary sentence proposed in the investigation report. The committee may also adopt another disciplinary sentence against or in favor, with the condition of presenting the justification for such a decision.

(3) In those instances where a criminal investigation is launched for the same act committed by a student, the Disciplinary Committee may decide to postpone the disciplinary procedures. When such a decision is taken, all time period foreseen as per article 26(1) shall be frozen.

(4) The fact that a defendant is sentenced by a court order, or the contrary result, shall not constitute an obstacle in issuing a disciplinary sentence.

(5) In those instances where a student was imprisoned as a result of a civil law suit, or their freedom is restricted by a sentence, students shall not be admitted to examinations taking place during the said sentence, and they shall not be allowed to seek any rights concerning the exams thus missed.

**Defendant's Right to Defense**

**27.** In instances where the investigation concerning a student is concluded, the Disciplinary Committee is obliged, prior to taking a decision on the student's case, to accord the student the right to a defense before the Committee. Nevertheless, in those instances where the student does not comply with the convocation of the Committee without any valid and acceptable justification for their absence at the Committee assembly, the Committee may rule in the absence of the student.

**Principles Concerning Adoption of Disciplinary Sentences**

**28.** When issuing one of the disciplinary sentences determined in the present regulation , authorities who are authorized to issue disciplinary sentences and the Disciplinary Committee shall take into consideration severity of the acts constituting disciplinary offence, whether the student who is subjected to the investigation has been issued a disciplinary sentence, the conduct, attitude and actions of the student, and whether the student is remorseful because of the act which they committed and because of their action.

**Writing up Decisions**

**29.**

**(1)** Justification leading to related decisions shall be included when noting the decisions, with the evidence to be explained summarily; related legislative provisions which constitute a basis for the decisions shall be indicated and signatures of the members attending the meeting leading to decision shall be affixed to the document.

**(2)** Those members who used a negative vote shall integrate their justification for such vote into the text documenting the decisions, and they shall affix their signature on the text next to their justifications.

**(3)** President of the Disciplinary Committee shall be responsible for assuring the writing up, signing up, and storage of decisions, as well as all other correspondence.

**Procedure for Finalizing Decisions**

**30.** Decisions of the Disciplinary Committee shall be rendered final in the following manner :

**(1)** All sentences other than expulsion from the University shall become final upon being signed by the Rector's Office at the latest within 10 working days of the date of the related decision of the Disciplinary Committee.

**(2)** In order to be rendered final, a decision of expulsion from the University must be approved by the Rector and consequently by the Senate. This procedure shall be concluded at the latest within 30 working days from the date of the decision taken by the Disciplinary Committee.

**(3)** In those instances where the Disciplinary Committee decision and/or the disciplinary sentence is deemed to be inappropriate, or deemed to be in breach of the procedures, the body who holds the authority of approval shall demand that the matter be discussed again during the next assembly of the Disciplinary Committee, and shall indicate their justification for such demand. In instances where the Disciplinary Committee fails to reach another decision at the conclusion of their second study of the initial decision, the original decision of the Committee shall be deemed to be final, except for decisions concerning expulsion from the university. Decisions reached by the Senate concerning expulsion from the University shall be deemed to be final.

## PART FIVE
## Implementation and Appeals

**Communication Concerning Disciplinary Matters**

**31.** **(1)** Disciplinary matters (an official complaint, convocation of a defendant or a witness for a hearing before the Disciplinary Committee, etc.) shall be communicated to the concerned student with a written notification, with a copy of the notification to be discreetly sent to the office of the concerned Faculty Dean, School Director, or Department Head for information purposes.

**(2)** Those sentences which are final shall be communicated by the Rector's Office. Sentences shall be notified in writing within 15 days of the date on which they become final; 1 copy shall be sent to the concerned student, 1 copy shall be sent by the concerned Dean's Office to the concerned Department Head/Director, and another copy shall be sent to the Registrar's Office where it will be added to the record of the student.

**Administering Disciplinary Sentences**

**32.** **(1)** The concerned Institute, Dean or Director is responsible for implementing in line with the provisions of the Disciplinary Regulation those disciplinary sentences which are finalized. A copy of the official sentence shall be submitted, in instances where such is deemed necessary, to the unit of the University which is responsible for security.

**(2)** Disciplinary Committee Decisions shall be implemented as of the date on which they were notified in writing to the concerned student, notwithstanding an indication to the contrary by the Committee. However care shall be taken to implement the sentences of short, intermediate and long term suspension from the University outside the examination periods which are indicated on the academic calendar. It is essential to utilize calendar days when implementing the sentences. In all cases, disciplinary sentences shall be implemented during a term where the student is registered for any course.

**Appealing Disciplinary Sentences**

**33.** **(1)** Sentences of "Warning" and "Reprimand" cannot be appealed. All other sentences can be appealed by submitting a written appeal to the Rector's Office within 5 working days following the date on which the sentence was communicated. The student who appeals a Disciplinary Committee decision shall not be allowed to attend lectures, examinations, educational works such as laboratory sessions, public cultural or sports activities, or any activity which represents the University, until a final decision is reached concerning their appeal.

**(2)** In those instances where a student appeals a sentence of short, intermediate, and long term suspension from the university, implementation of the suspension shall be interrupted, when such is deemed necessary by the Rector, and the appealed decision shall be brought to the attention of the Disciplinary Committee for a review, with the justification of such an action to be provided. The Disciplinary Committee shall rule on the appeal within 10 working days. In those instances where the review does not result in a different decision by the Committee, the initial sentence shall be implemented entirely. In instances where a different decision is reached, the procedure to be undertaken shall be conform to the provisions

covered under Article 30 of the present Regulation. The time that elapses during the above mentioned procedures, and until a final decision is reached on the student, shall be deducted from the duration of the sentence to be implemented.

**(3)** In those instances where a sentence of expulsion from the University was appealed, the Rector shall communicate the request for appeal to the Senate. The Senate shall stop implementing the sentence, review the matter, and accord the student another opportunity of defense if such is deemed appropriate. In instances where necessary, the Senate shall request in writing additional information from the Disciplinary Committee and/or the student, and shall decide on the matter within 10 working days from the date on which the request for appeals was communicated. The decision of the Senate concerning appeal is final.

## PART SIX
## Miscellaneous Provisions

**Sentence of Advanced Severity**

**34.** In those instances where the act committed by a student who is subject to a disciplinary procedure necessitates the implementation of a sentence which was previously issued to them in the same academic year for another act, the student shall be issued the sentence which is next in degree of severity.

**Pardoning a Sentence**

**35.** **(1)** In those instances where having served the sentence which was noted in their record, a student is not issued a disciplinary sentence during at least one year, or, during a period of less than a year where the student is to graduate at the end of such period, and where the student voluntarily participates in a Social Awareness Project as determined and communicated by the University, upon the student's application.

**(A)** Sentences of Warning and Reprimand may be pardoned by the authority/disciplinary committee who/which had issued the sentence,

**(B)** Sentences superior in severity to a Reprimand may be pardoned upon a proposal of the concerned Dean or Director, and with a decision of the Senate.

**(2)** In instances where a sentence is pardoned, such sentence shall not be recorded on the documents which will be delivered to the concerned student. However, losses suffered due to the sentence shall not be compensated.

**Administrative Precaution**

**36.** **(1)** As an urgent administrative precaution in instances where a disciplinary procedure is commenced concerning a student, when referring the concerned student to the Disciplinary Committee, the body who holds the authorization to launch a disciplinary investigation is authorized, prior to or consequent to the referral of the concerned student, without awaiting the launch of the disciplinary investigation, to suspend the student from the University, or to inhibit the student from attending lectures, laboratory works, workshops ,or examinations for a temporary period, with such action being subject to the approval of the Rector's Office.

However, in those instances where the investigation is launched by a vice rector, authorization for such action shall be provided by the Rector as per the present article.

**(2)** In those instances where a student is sentenced to suspension for a period of short, intermediate or long term, they shall not be suspended from residence halls. However, in those instances where there is a possibility that a student who is sentenced, or who is subject to a disciplinary investigation may perturb the secured environment or the peace in residence halls, the Rector's Office may take a decision to suspend, or to expulse the student from residence halls.

**Notifications** **37.** **(1)** All text or document which must be communicated to the concerned student in the context of a disciplinary investigation, or a disciplinary sentence shall be delivered against signature of the student.

However in those instances where it was not possible to undertake such notification within 5 working days, the notification shall be carried out by utilizing the address which the student had communicated to the University, or the electronic mail address which the University had allocated to the student. Such notification shall be deemed to have been delivered to the concerned student.

**(2)** In those instances where a student fails to inform the University of a change of that address which had been communicated to the University during their enrollment, or where the student communicates an incomplete or incorrect address to the University, the student shall be deemed to have been notified when a notification is made to the address which had been initially indicated by the student during their enrollment.

**Executive Power** **38.** This Regulation shall be executed by the Rector's Office.

**Validity** **39.** This Regulation shall take effect upon approval of the Board of Trustees from the date on which it is published on the student portal.